



Salmon and Freshwater Fisheries Act 1972

1972 CHAPTER 37

An Act to amend the law relating to the regulation and control of fishing for salmon, trout, freshwater fish and eels, the protection and conservation of fisheries for such fish, the times of fishing for and selling such fish and the enforcement of the provisions of that law; and for connected purposes. [29th June 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Prohibition
of fishing
with certain
implements.

1.—(1) For section 1(1) of the 1923 Act (prohibition of fishing with lights, spears and other instruments) there shall be substituted the following subsection:—

“(1) Subject to subsection (4) below, no person shall—

(a) use any of the following instruments, that is to say—

(i) a firearm within the meaning of the Firearms Act 1968;

(ii) an otter lath or jack, wire or snare;

(iii) a crossline or setline;

(iv) a spear, gaff, stroke-haul, snatch or other like instrument;

(v) a light;

for the purpose of taking or killing salmon, trout or freshwater fish.

(b) have in his possession any instrument mentioned in paragraph (a) above intending to use it to take or kill salmon, trout or freshwater fish; or

1968 c. 27.

(c) throw or discharge any stone or other missile for the purpose of taking or killing, or facilitating the taking, or killing of any salmon, trout or freshwater fish."

(2) In section 1(3) (definitions) at the end there shall be added the following paragraphs:—

(c) "crossline" means a fishing line reaching from bank to bank across water and having attached to it one or more lures or baited hooks;

(d) "setline" means a fishing line left unattended in water and having attached to it one or more lures or baited hooks.

(3) In section 1(4) (exemption for gaffs, etc.), at the end there shall be added the following words "or having such a gaff or a tailer in his possession intending to use it as aforesaid".

2.—(1) Any approval or consent given by the Minister to or in relation to a fish pass for the purpose of section 14(1), 19(1) or 20 of the 1923 Act may, if in giving it he indicates that fact, be provisional until he notifies the applicant for approval or consent that the fish pass is functioning to his satisfaction. Provisional approval of fish passes.

(2) While any such approval or consent is provisional, the Minister may, after giving the applicant not less than 90 days notice of his intention to do so, revoke the approval or consent.

(3) Where the Minister revokes a provisional approval given for the purpose of section 19(1) of the 1923 Act to a fish pass forming part of or in connection with a dam or other obstruction, he may extend the period within which under that subsection a fish pass is to be made as part of or in connection with the obstruction; and subsection (6) of that section (power to exempt dams from the operation of that section) shall cease to have effect.

(4) In section 21(1) of the 1923 Act (effect of approval of fish pass) after the word "Minister" there shall be inserted the words "and the approval has not been revoked".

3.—(1) It shall be the duty of every river authority to make within three years of the passing of this Act byelaws under section 59(1)(a) to (d) of the 1923 Act, as amended by the following provisions of this section, fixing as respects their area or the respective parts of it the annual close season and weekly close time for salmon and for trout other than rainbow trout, and the references in the said paragraph (d) to trout shall be construed as references to trout other than rainbow trout. Close season and close time for salmon and brown or migratory trout.

(2) If within those three years a river authority have not made any such byelaws for a part of their area, the Minister may,

with or without a local inquiry, make such byelaws for that part of that area, and paragraphs 2, 3 and 5 to 8 of Schedule 12 to the Water Resources Act 1963 (provisions relating to the making of byelaws by river authorities and to byelaws of theirs which have been confirmed under that Schedule) shall apply to the making of byelaws by virtue of this subsection and byelaws so made as they apply to the making of byelaws by a river authority and to byelaws purporting to have been so made and confirmed under that Schedule—

- (a) with the substitution of a reference to the Minister for any reference to a river authority in paragraph 2 or 8 (except for the reference in paragraph 8 to the clerk of the authority);
- (b) with the substitution of a reference to making or the making of a byelaw for any reference in paragraphs 2 and 3 to applying or an application for the confirmation of a byelaw;
- (c) with the substitution of a reference to a byelaw made by the Minister for any reference in paragraphs 5 and 6 to a byelaw confirmed under that Schedule; and
- (d) with the omission of paragraph 8(c).

(3) Any provision of the 1923 Act which specifies the period of the annual close season or weekly close time for salmon or for trout of any description, or the latest date on which under any byelaws under section 59(1)(a) to (d) any such season or time is to commence, or the maximum length of any such time, shall to the extent that it so specifies cease to have effect as respects any river authority area as from the date on which any byelaws made by virtue of this section come into force as respects that area.

(4) In section 59(1) of that Act after paragraph (b), there shall be inserted the following paragraph—

“(bb) to fix or alter the close season for fishing for salmon or for trout other than rainbow trout with putts or putchers so that the close season is not less than 242 days.”

(5) In sections 30(3)(d) and 32(1)(A)(d) of that Act (exemption of lawfully caught salmon and trout from prohibition of sale during close season) the words “other than a rod and line” shall cease to have effect.

Close season
for freshwater
fish and
rainbow trout.

4.—(1) In section 59(1)(e) of the 1923 Act (power to make byelaws fixing or altering the annual close season for freshwater fish) for the words from “so that” to the end of the paragraph there shall be substituted the words “or rainbow trout so that the close season is not less than 93 days or to dispense with it.”

(2) The following provisions of this section shall have effect instead of section 35(1) and (2) of that Act (prohibition of fishing for freshwater fish during the annual close season for such fish and definition of that season), and section 35(3) of that Act (prohibition of transactions in freshwater fish during that season) shall cease to have effect.

(3) Subject to subsection (4) below, no person shall, during the annual close season for freshwater fish or rainbow trout, fish for, take or kill, or attempt to take or kill, any freshwater fish or rainbow trout in any inland water or fish for eels by means of a rod and line in any such water.

(4) Subsection (3) above shall not apply—

- (a) to the removal by the owner or occupier, from any several fishery where salmon or trout are specially preserved, of any eels, freshwater fish or rainbow trout not so preserved;
- (b) to any person fishing with rod and line in any such fishery with the previous permission in writing of its owner or occupier;
- (c) to any person fishing with rod and line for eels in any waters in which such fishing is authorised by a byelaw under this Act;
- (d) to the taking of freshwater fish or trout for scientific purposes, or the taking of freshwater fish for bait, in a several fishery with the permission in writing of its owner or occupier or, except where the taking would contravene a byelaw under this Act, in any other fishery.

(5) The annual close season for freshwater fish shall be the period between 14th March and 16th June except in relation to waters for which such a season is dispensed with or a different period is substituted by byelaws under section 59(1)(e) of the 1923 Act, and where a different period is so substituted in relation to any waters, the annual close season for those waters shall be that substitute period.

(6) The annual close season for rainbow trout for any waters is that fixed for those waters by byelaws under the said section 59(1)(e).

5.—(1) Section 59(1) of the 1923 Act (byelaws of river authorities) shall have effect subject to the further amendments made by the following provisions of this section. Miscellaneous amendments as to byelaws.

(2) For paragraph (f) there shall be substituted the following paragraph:—

- “(f) to specify the nets and other instruments (not being fixed engines) which may be used for taking salmon,

trout, freshwater fish and eels and to impose requirements as to the construction, design, material, dimensions and use of such instruments, including in the case of nets the size of mesh."

(3) For paragraph (q) there shall be substituted the following paragraph:—

"(q) to require persons fishing for salmon, trout or freshwater fish to send to the river authority returns, in such form, giving such particulars and at such times as may be specified in the byelaws, of any such fish which they have taken or a statement that they have taken no such fish.

Licences to fish.

6.—(1) The provisions of this section and sections 7 to 9 below shall have effect instead of Part VII of the 1923 Act.

(2) A river authority shall by means of a system of licensing regulate fishing for salmon and trout in their area and, except so far as excused by the Minister, shall by such means regulate fishing for freshwater fish of any description or eels in their area.

(3) Subject to the following provisions of this section, a licence granted for the purposes of this section (hereafter in this Act referred to as a fishing licence) shall entitle the person to whom it was granted and no others to use an instrument specified in the licence to fish for any fish of a description, in an area and for a period so specified.

(4) A fishing licence for the use of an instrument other than a rod and line to fish for salmon or trout shall also authorise the use of the instrument for that purpose by the duly authorised servants or agents of the person to whom it was granted, but not exceeding the number permitted by paragraph 13 of Schedule 1 to this Act.

(5) A fishing licence for the use of a rod and line shall entitle the licensee to use as ancillary to that use a gaff, consisting of a plain metal hook without a barb, or a tailer or landing net.

(6) A fishing licence for the use of any instrument for fishing for salmon shall authorise the use of that instrument for fishing for trout.

(7) A fishing licence in respect of any instrument for fishing for salmon or trout shall authorise the use of that instrument for fishing for freshwater fish and eels.

(8) Any person or association entitled to an exclusive right of fishing in any inland waters may be granted a general licence to fish in those waters subject to any conditions agreed between the river authority and the licensee, and the licence shall entitle the licensee and, subject to section 12(7) below, any person authorised by him in writing or, in the case of an association, by its secretary so to fish.

(9) Schedule 1 to this Act shall have effect with respect to licences under this section.

7.—(1) A river authority may by order confirmed by the Minister— Limitation of licences.

- (a) limit for a period not exceeding ten years from the coming into operation of the order the number of fishing licences to be issued in any year for fishing in any part of their area for salmon or trout other than rainbow trout with any instrument so specified other than rod and line ; and
- (b) provide for the selection of the applicants to whom such licences are to be issued where the number of applications exceeds the number of licences which may be granted.

(2) Where the Minister proposes to confirm an order under this section, he shall require the river authority to publish the order and notice of his intention to confirm it in such manner as he may require, together with a notification that within a period specified in the requirement written objections to the order may be made to him.

(3) The Minister shall consider any such objections received by him within the said period, and—

- (a) if the number of licences as proposed to be limited by the order is less than the number of licences issued in any of the three years preceding the year in which the order is to come into operation ; and
- (b) any such objection is made by any person who has during each of the two years preceding that year held a licence of the same description as the licences which it is proposed so to limit in number ;

he shall cause a local inquiry to be held before confirming the order.

(4) Subject to subsection (5) below, the Minister shall not confirm an order under this section unless he is satisfied that the terms of the order relating to the selection of applicants for licences are such as to secure that any person who during the year preceding that year held a fishing licence to use an instrument of any description and who is dependent on fishing for his livelihood will be able to obtain a fishing licence to use an instrument of that description.

(5) If it appears to the Minister that the operation of subsection (4) above would be detrimental to the conservation of any fishery, he may direct that that subsection shall in its application to that fishery have effect with the substitution for the words "the year" of the words "the two years" or, if in his opinion, special circumstances justify it, "the three years".

(6) The Minister may with the consent of the river authority vary an order submitted to him under this section before confirming it and may require the river authority to publish the terms of the proposed variation in such manner, if any, as he may specify in the requirement.

(7) An order under this section may be revoked by the Minister, or by an order made by the river authority and confirmed by the Minister.

**Unlicensed
fishing.**

8. A person is guilty of an offence if, in any place in which fishing for fish of any description is regulated by a system of licensing, he—

- (a) fishes for or takes fish of that description otherwise than by means of an instrument which he is entitled to use for that purpose by virtue of a licence under section 6 above or otherwise than in accordance with the conditions of the licence ; or
- (b) has in his possession with intent to use it for that purpose an instrument other than one which he is authorised to use for that purpose by virtue of such a licence.

**Production
of licence.**

9.—(1) Any of the following persons, namely—

- (a) any member of a river authority on producing a certificate of his membership signed by the clerk of the authority ;
- (b) any water bailiff appointed under the Water Resources Act 1963 on producing evidence of his appointment ;
- (c) any constable ;

may require any person who is fishing, or whom he reasonably suspects of being about to fish or to have within the preceding half hour fished, in a river authority area to produce his licence or other authority to fish and to state his name and address.

(2) A person holding a fishing licence for any river authority area may, on production of his licence, require any person who is fishing in that area to produce his licence or other authority to fish and to state his name and address.

(3) If any person required under the foregoing provisions of this section to produce his licence or other authority or to state his name and address fails to do so, he shall be guilty of an offence ; but if within seven days after the production of his licence was so required he produces the licence or other authority at the office of the river authority, he shall not be convicted of an offence under this section of failing to produce it.

10. A person is guilty of an offence if he introduces any fish or spawn of fish into an inland water, or has in his possession any fish or spawn of fish intending to introduce it into an inland water, unless he first obtains the written consent of the river authority within whose area any part of that water is situated.

Restriction on the introduction of fish into inland waters.

11.—(1) In section 67(1) of the 1923 Act (powers of search and seizure) for paragraphs (b) and (c) there shall be substituted the following paragraphs:—

Powers of entry, search, seizure and arrest.

“(b) examine any instrument or bait which he has reasonable cause to suspect of having been or being used or likely to be used in taking fish in contravention of this Act or the Salmon and Freshwater Fisheries Act 1972 or any container which he has reasonable cause to suspect of having been or being used or likely to be used for holding any such instrument, bait or fish ;

(c) stop and search any boat or other vessel used in fishing in a river authority area or any vessel or vehicle which he has reasonable cause to suspect of containing—

(i) fish which had been caught in contravention of this Act or the Salmon and Freshwater Fisheries Act 1972 ;

(ii) any such instrument, bait or container as aforesaid ”.

(2) In section 67(2) of the 1923 Act (obstruction) after the words “ authorised to make ” there shall be inserted the words “ or to seize anything which he is so authorised to seize ” and for the words “ or examination ”, in the second place where they occur, there shall be substituted the words “ examination or seizure ”.

(3) Notwithstanding anything in paragraph 9(2) of Schedule 3 to the Water Resources Act 1963 (exclusion of provisions of the 1923 Act in river authority areas), section 68 of the 1923 Act (entry on land to prevent offences) shall apply to river authorities and river authority areas, and—

(a) in that section and sections 69 and 70 of the 1923 Act (entry on land to detect offences, etc.) references to offences against the 1923 Act shall include references to offences against this Act ; and

(b) the powers conferred by those sections on water bailiffs may be exercised by any other officer or servant of the river authority and references in those sections to water bailiffs shall be construed accordingly.

(4) In section 70 of the 1923 Act the word “ concealed ”, in both cases where it occurs, shall cease to have effect and for

1963 c. 38.

the word "engines", in both places where it occurs, there shall be substituted the words "other instruments".

(5) Sections 70 and 71 of the 1923 Act (power to arrest persons fishing illegally at night) shall apply in relation to eels as they apply in relation to freshwater fish.

Provision
for trial of
offenders and
penalties for
offences.

12.—(1) The following provisions of this section shall have effect with respect to offences against the 1923 Act and this Act, and accordingly section 74 of that Act shall cease to have effect.

(2) Parts I and II of Schedule 2 to this Act shall have effect with respect to the prosecution and punishment of the offences against the provisions of the 1923 Act and this Act respectively specified in column 1 of that Schedule (of which a rough description is given in column 2 thereof), and in relation to any such offence—

(a) column 3 shows whether the offence is punishable summarily (that is to say, on summary conviction) or on indictment or either in one way or the other; and

(b) column 4 shows the maximum punishment by way of fine or imprisonment which may be imposed on a person convicted of the offence in the way specified in column 3 (that is to say, summarily or on indictment), any reference in column 4 to a period of years or months being construed as a reference to a term of imprisonment for that period.

(3) For the purposes of Schedule 2 to this Act a person shall be treated as acting together with another, if both are engaged in committing an offence against section 1 of the 1923 Act or an offence against section 8 above, other than one committed by means of a rod or line or without any instrument, or one is aiding, abetting, counselling or procuring the commission of such an offence by the other.

(4) A person guilty of an offence against any provision of the 1923 Act or this Act not specified in the said Schedule 2 shall be liable to a fine not exceeding £50 or, in the case of a second or subsequent conviction, £100.

(5) The court by which a person is convicted of an offence against the 1923 Act or this Act may order the forfeiture of—

(a) any fish illegally taken by him or in his possession at the time of the offence;

(b) any instrument, bait or other thing used in the commission of the offence;

(c) in the case of an offence of unlawful possession of any substance or device in contravention of section 9 of the 1923 Act, that substance or device; and

(d) on conviction on indictment, any vessel or vehicle used in or in connection with the commission of the offence or in which any substance or device unlawfully in his possession was contained at the time of the offence ; and may order any object so forfeited to be disposed of as the court thinks fit.

(6) Schedule 7 to the Customs and Excise Act 1952 (provisions relating to the forfeiture of things seized under that Act) shall apply in relation to any vessel or vehicle liable to forfeiture under subsection (5) above as it applies in relation to anything liable to forfeiture under that Act, but in its application in relation to any such vessel or vehicle, shall have effect subject to the following modifications :—

- (a) provisos (a) to (c) to paragraph 1 and paragraph 5 of that Schedule shall be omitted ;
- (b) for references in that Schedule to the Commissioners of Customs and Excise there shall be substituted references to the river authority within whose area the offence in question was committed ; and
- (c) the court shall not condemn a vehicle or vessel as forfeited under paragraph 6 of that Schedule if satisfied by its owner that that offence was committed without his knowledge and that he could not have reasonably foreseen that it would be used as mentioned in subsection (5)(d) above ;

and where notice of claim in respect of anything is duly given in accordance with paragraphs 3 and 4 of that Schedule, as applied by this subsection, the court shall not exercise its power of ordering forfeiture of the vessel or vehicle under subsection (5) above.

In this subsection “owner”, in relation to a vessel or vehicle which is the subject of a hire-purchase agreement, means the person in possession of the vehicle under that agreement.

(7) If a person is convicted of an offence against the 1923 Act or this Act and is subsequently convicted of any such offence, the court may order that any fishing or general licence held by him shall be forfeited, and that he shall be disqualified for holding and obtaining a fishing or general licence or for fishing in a river authority area by virtue of a fishing or general licence for such period not exceeding one year as the court thinks fit.

13.—(1) A person who is prosecuted for an offence against the 1923 Act or this Act and who is the holder of a fishing or general licence shall either—

- (a) cause it to be delivered to the clerk of the court not later than the day before the date appointed for the hearing, or

Supplementary provision as to disqualifications and forfeiture of licences.

(b) post it, at such a time that in the ordinary course of post it would be delivered not later than that day, in a letter duly addressed to the clerk and either registered or sent by the recorded delivery service, or

(c) have it with him at the hearing ;

and if he is convicted of the offence and the court makes an order under section 12(7) above the court shall order the licence to be surrendered to it ; and if the offender has not posted the licence or caused it to be delivered as aforesaid and does not surrender it as required then he shall be guilty of an offence and the licence shall be revoked from the time when its surrender was ordered.

(2) Where a court orders a fishing or general licence to be surrendered to it under subsection (1) above, or where by an order of a court under section 12(7) above a person is disqualified for holding or obtaining a licence, the court shall—

(a) send notice of the order to the river authority within whose area the offence was committed, unless the authority prosecuted in the case ;

(b) if the licence has been so surrendered, retain it and forward it to that authority, who may dispose of it as they think fit.

Supplemental. 14.—(1) In this Act, except so far as the context otherwise requires—

“fishing licence” has the meaning assigned to it by section 6(3) above ;

“general licence” means a licence granted under section 6(8) above ;

1963 c. 38.

“inland water” has the same meaning as in the Water Resources Act 1963 and any reference in this Act to an inland water includes references to part of an inland water ;

1923 c. 16.

“the 1923 Act” means the Salmon and Freshwater Fisheries Act 1923.

(2) Expressions used in the 1923 Act and this Act have the same meanings in this Act as they have in that Act.

(3) It is hereby declared that in the 1923 Act and this Act references to eels include references to elvers and the fry of eels.

(4) Functions conferred on river authorities by or by virtue of this Act shall be treated for the purposes of the Water Resources Act 1963 as transferred functions, and not as new functions, of those authorities.

15.—(1) In section 82 of the 1923 Act (exclusion of that Act Provisions as from applying to the River Tweed) and section 83 of that Act to border (application of that Act to the River Esk and its tributaries) rivers. references to that Act shall include references to this Act.

(2) In section 126(1) of the Water Resources Act 1963 (extension of river authority fishery functions to the River Esk and its tributaries in Scotland), as amended by section 2(3) of the Salmon and Freshwater Fisheries Act 1965, for the words “the Salmon and Freshwater Fisheries Acts 1923 to 1965” there shall be substituted the words “the Salmon and Freshwater Fisheries Acts 1923 to 1972”. 1963 c. 38. 1965 c. 68.

(3) Offences against the 1923 Act or this Act committed in Scotland shall be proceeded against and punished in Scotland, and proviso (a) to the said section 126(1) (prosecution of offences in Scotland) shall not apply to offences under the Salmon and Freshwater Fisheries Acts 1923 to 1972.

16.—(1) This Act may be cited as the Salmon and Freshwater Fisheries Act 1972. Short title, citation, repeals, transitional provisions and extent.

(2) This Act and the Salmon and Freshwater Fisheries Acts 1923 to 1965 may be cited together as the Salmon and Freshwater Fisheries Acts 1923 to 1972.

(3) The provisions of the 1923 Act specified in Part I of Schedule 3 to this Act are hereby repealed as from the passing of this Act, those specified in Part II of that Schedule are hereby repealed in any river authority area as from the coming into force in that area of byelaws made by virtue of section 3 above and the provisions of the enactments specified in Part III of that Schedule are hereby repealed as from the passing of this Act to the extent specified in relation thereto in the third column of that Part of that Schedule.

(4) Any licence in force under any provision of section 61 of the 1923 Act immediately before the passing of this Act shall be treated as having been granted under the corresponding provision of section 6 of this Act; and any order limiting the number of licences in force in a river authority area under section 62 of that Act immediately before the passing of this Act shall be treated as having been made under section 7 of this Act and as having limited the number of licences in that area for a period of ten years from the passing of this Act.

(5) This Act, except section 15, does not extend to Scotland.

(6) This Act does not extend to Northern Ireland.

SCHEDULES

Section 6.

SCHEDULE 1

PROVISIONS WITH RESPECT TO LICENCES

Duty on licences

1. Except where the river authority in special cases grants an exemption from this paragraph, there shall be payable in respect of a fishing licence a duty fixed in accordance with the following provisions of this Schedule by the river authority.

2. Different duties may be fixed by the river authority under paragraph 1 above for different instruments, different periods, different parts of their area, different descriptions of fish and different classes of licence holder.

3. A river authority shall at least one month before fixing or altering a duty for the use of any instrument in any part of their area, except a duty payable in respect of a temporary licence, publish in one or more newspapers circulating in that part of their area notice of their intention to do so.

4. If during the month immediately following the publication of the said notice a written objection to the proposed duty is made to the Minister by any interested person, the river authority shall not fix or alter the duty without the approval of the Minister.

5. The Minister, with or without a local inquiry, may refuse to approve any duty submitted by a river authority for his approval under paragraph 4 above or may approve the duty with or without modifications; and the authority shall if so directed by the Minister cause notice of any proposed modification to be given in accordance with the direction.

6. Any duty fixed under the foregoing provisions of this Schedule shall not take effect until the beginning of the year following that in which it is fixed or in the case of a duty required to be approved by the Minister, in which it is approved by him.

7. A river authority may grant a temporary licence, that is to say, a licence authorising the use of an instrument for fishing in circumstances specified in the licence during a period not exceeding 14 days, and may charge in respect of that licence a duty less than the duty fixed for the use of that instrument under the foregoing provisions of this Schedule.

8. There shall be payable in respect of a general licence such sum as may be agreed between the river authority and the licensee.

Net, etc. licences for salmon and trout fishing

9. A person shall be treated for the purposes of section 6(4) above as the duly authorised servant or agent of the holder of a licence to use an instrument of any description only in the following cases—

- (a) in an area in which there is in force an order under section 7 above limiting the number of licences for fishing with instruments of that description, if his name and address are entered on the licence in accordance with the following

provisions of this Schedule and he is not the holder of another licence to use an instrument of that description in that area ;

- (b) in any other area, if his name and address are so entered or when using the instrument to which the licence relates he is accompanied by the licensee ; or
- (c) in the case of any area, if the river authority directs that owing to special circumstances he is to be so treated.

10. The name and address of a servant or agent may be entered on a licence by an officer of the river authority authorised to do so or by the licensee or an agent who has been appointed by the licensee to act for the purposes of this paragraph and whose appointment, together with his name and address, has been notified to the river authority.

11. The date of an entry in a licence shall be stated in the licence at the time of the making of the entry and within 24 hours of the making of an entry by a licensee or his agent a copy shall be sent, together with a fee of 20p for every name and address entered, to the river authority.

12. The name and address of a servant or agent may be removed from, or inserted in, a licence on payment of a fee of 20p for each removal or insertion or, where a name and address are inserted in substitution for a name and address removed, for each substitution.

13. The number of servants or agents whose names may at any time be entered on a licence shall not exceed twice the number of persons who in the opinion of the river authority are required to work at one time the instrument to which the licence relates or, where the applicant for the licence notifies the authority at the time of the application that he proposes to take part in working the instrument, one less than twice that number.

14. Any person who with intent to deceive enters on a licence more names than are permitted by paragraph 13 above or states falsely the date of an entry in a licence is guilty of an offence.

Miscellaneous

15. Subject to section 7 above, a fishing licence shall on payment of the duty in respect of the instrument to which the licence relates be granted by the river authority to every applicant therefor who is at the time of the application not disqualified for holding a fishing licence.

16. A fishing licence shall not confer any right to fish at a place or a time at which the licensee is not otherwise entitled to fish.

17. A fishing licence shall not authorise the erection of any structure or the use of any installation or instrument for or in connection with fishing the erection or use of which would be otherwise illegal.

18. Section 81(1) of the 1923 Act (evidence of byelaws and licence duties under that Act) shall apply to a licence duty fixed and, if it be the case, approved by the Minister under this Schedule as it applies to licence duties fixed and approved under that Act.

Section 12.

SCHEDULE 2

PROSECUTION AND PUNISHMENT OF OFFENCES

PART I

OFFENCES UNDER THE 1923 ACT

(1) Provision of the 1923 Act creating the offence	(2) Rough description of offence	(3) Mode of prosecution	(4) Punishment
Section 1 ...	Fishing with certain instruments for salmon, trout or fresh-water fish and possessing certain instruments for fishing for such fish.	(a) If not acting with another, summarily. (b) If acting with another— (i) summarily; (ii) on indictment.	£50; or in the case of a second or subsequent conviction £100. £100; or in the case of a second or subsequent conviction £200. Two years or a fine or both.
Section 8 ...	Discharging poisonous or injurious matter into waters containing fish or spawn.	(a) Summarily. (b) On indictment.	£400 and £40 for each day on which the offence continues after a conviction thereof. A fine or two years or both.
Section 9(3) ...	Using explosives, poisons, noxious substances or electrical devices, and cutting through or destroying dams, etc., to take or destroy fish.	(a) Summarily. (b) On indictment.	£200; or in the case of a second or subsequent conviction £400. Two years or a fine or both.
Section 26 ...	Fishing for salmon during the annual close season.	Summarily.	£100; or in the case of a second or subsequent conviction £200.
Section 27 ...	Fishing for salmon during the weekly close time.	Summarily.	£100; or in the case of a second or subsequent conviction £200.
Section 31 ...	Fishing for trout during the annual close season.	Summarily.	£100; or in the case of a second or subsequent conviction £200.
Section 36 ...	Prohibition on use of certain devices at certain times.	Summarily.	£100; or in the case of a second or subsequent conviction £200.

PART II
OFFENCES UNDER THIS ACT

(1) Provision of this Act creating the offence	(2) Rough description of offence	(3) Mode of prosecution	(4) Punishment
Section 4 ...	Fishing for freshwater fish and rainbow trout during the annual close season and fishing for eels by means of a rod and line during that season.	Summarily.	£100; or in the case of a second or subsequent conviction £200.
Section 8 ...	Fishing for fish otherwise than under the authority of a licence and possessing an unlicensed instrument with intent to use it for fishing.	(a) If not acting with another, summarily. (b) If acting with another— (i) summarily; (ii) on indictment.	£50; or in the case of a second or subsequent conviction £100. £100; or in the case of a second or subsequent conviction £200. Two years or a fine or both.

Section 16.

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REPEALS

PART I

REPEALS OF THE 1923 ACT TAKING EFFECT ON THE
PASSING OF THIS ACT

- In section 1(2), the words "against this Act".
In section 2(2), the words "against this Act".
In section 3(2), the words "against this Act".
In section 4(2), the words "against this Act".
In section 6(2), the words "against this Act".
In section 7(2), the words "against this Act".
In section 8(1), the words "against this Act".
In section 9, in subsection (3), the words "and shall be liable" to the end, and subsection (4).
In section 11(3), the words "against this Act".
In section 12(2), the words "against this Act".
In section 13(2), the words "against this Act".
In section 14(2), the words "against this Act".
In section 15(2), the words "against this Act".
In section 17(2), the words "against this Act".
In section 18(2), the words "against this Act".
In section 19, in subsections (2) and (4), the words "against this Act", wherever occurring, and subsection (6).
In section 20(4), the words "against this Act".
In section 22, in subsections (1), (2) and (3), the words "against this Act", wherever occurring.
In section 23(4), the words "against this Act".
In section 24(5), the words "against this Act".
In section 26(2), the words "against this Act".
In section 27(2), the words "against this Act".
In section 28(2), the words "against this Act".
In section 29, the words "against this Act".
In section 30, in subsection (2), the words "against this Act" and in subsection (3)(d), the words "other than a rod and line".
In section 31(2), the words "against this Act".
In section 32(1), the words "against this Act".
In section 32(1A)(d), as inserted by the Salmon and Freshwater Fisheries (Amendment) Act 1929, the words "other than a rod and line".
In section 33(4), the words "against this Act".
In section 34(3), the words "against this Act".
Section 35.
In section 36(2), the words "against this Act".
In section 37, as amended by the Salmon and Freshwater Fisheries Act 1935, the words "or elver fisheries".
In section 38, in subsection (1), paragraph (f) and the proviso, and subsection (4).
In section 59, in subsection (1), in paragraphs (a) and (b), the words from "and does not" to the end of each paragraph; in paragraph (c), the words "nor more than seventy-two"; in paragraph (d), the words

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"and does not commence later than the first day of September in each year", the words "and does not commence", in the second place where they occur, to "each year" in the last place where they occur, and the words "nor more than seventy-two"; and in subsection (3), the words "against this Act".

Sections 61 to 65.

In section 70, the word "concealed", in both places where it occurs.

Section 74.

Section 75(2).

In section 83, the proviso.

Section 88.

In section 92, in the definition of "freshwater fish", the words "and the fry of eels" and the definition of "licensee".

In section 93(2), proviso (i) and, in proviso (ii), the words "or scale of licence duties" and "or scale".

PART II

REPEALS OF THE 1923 ACT TAKING EFFECT ON THE COMING INTO FORCE OF BYELAWS

Section 26(3) to (5).

Section 27(3).

In section 31, in subsections (3), (4) and (5), the words from "or if there" to the end of each subsection.

PART III

OTHER REPEALS TAKING EFFECT ON THE PASSING OF THIS ACT

Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 43.	The Salmon and Freshwater Fisheries Act 1935.	In section 1 the words "and elver fisheries" and the words "or elver fisheries". Section 2.
1963 c. 38.	The Water Resources Act 1963.	In Schedule 3, in paragraph 9(2), the words "68 and 88".